



File No.: EXP202310874

SANCTIONING PROCEDURE RESOLUTION

From the procedure conducted by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 03/07/2023, a complaint was filed with the Spanish Agency for Data Protection regarding a possible infringement attributable to the entity AGENCIA ESTATAL DE METEOROLOGIA, with NIF Q2801668A (hereinafter, the complained party or AEMET).

The facts brought to the attention of this authority:

On 09/03/2023, the complainant sent an email to the data protection officer of the complained party to verify whether the documentation requested by the General Affairs and Internal Regime Service to apply for the parking card complies with the provisions of data protection regulations.

According to the complainant, the officer issued a report concluding that there is no justification supporting the request for documents made, considering the purpose pursued.

The complainant adds that, on 22/06/2023, they requested a vehicle change on their parking card and were again asked for documentation without an express resolution and without justifying the purposes of data processing or the minimization of documentation.

Along with the complaint, the complainant provides the form that must be submitted to request the parking card, through which personal data of the applicant is collected, including ID number, phone/extension, first name, last name, administrative unit, license plate, and make/model of the vehicle. According to this form, the applicant must attach the following documentation: a photocopy of the valid driver's license, a photocopy of the vehicle's registration certificate, a photocopy of the Family Book or original authorization if the vehicle is not registered in the applicant's name.

Additionally, the following documentation is included:

- A copy of the email dated 09/03/2023, mentioned in the complaint, sent by the complainant to the address "dpd@aemet.es", in which they inquire whether collecting the aforementioned documentation complies with the principles of data minimization and purpose limitation.

- An email dated 30/06/2023, addressed to the complainant from the address "buzónasuntosgenerales@aemet.es", which includes the following text: "Request received to modify your parking card at the Central Headquarters, this service, in order to initiate the necessary procedures, in accordance with the established procedure, informs you that you must provide the following documentation for the new vehicle license plate...:

- authorization document for its use from the vehicle owner, if it is not in your name
- documentation of the vehicle's driving license."

- A copy of two emails, both dated 03/07/2023, sent by the complainant to the address "dpd@aemet.es", in which they again raise the relevance of collecting those documents and request an express response to their inquiry.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to AEMET for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out electronically in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was accepted by the entity AEMET on 03/08/2023. This is confirmed in the certificate included in the file, issued by the Support Service of the Single Enabled Electronic Directorate (DEHÚ).

On 07/09/2023, a response was received from the aforementioned entity, reporting on the report prepared in response to the email sent by the complainant to the address "dpd@aemet.es", with the following details:

"The referred procedure could violate several provisions set forth in data protection regulations:

- The requested data is not collected for a specific purpose, which must be specified in the application form or in any accompanying document.

- The requested data is excessive for the possible legitimate purpose that AEMET may have, to control and limit the vehicles that can access and park in the agency's facilities.
- It is not specified who is responsible for the processing of this data, nor who is in charge of processing said data.
- It is not specified how long the collected data will be retained.
- The data is neither adequate nor relevant to the possible purpose pursued.
- It is not specified whether the data will be transferred to other sections of the agency itself, or even to other public or private bodies.
- It is not specified where individuals can direct their requests to exercise their rights regarding data protection."

And it makes a series of recommendations and advises modifying the procedure in the following terms:

- "Do not request so much documentation, as the necessity for it to authorize parking in the Agency's facilities is not understood, and therefore to issue the corresponding parking card.
- Request only the essential data to issue the corresponding parking card. In the opinion of this officer, and without further data than the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/14

provided in the claim to adequately assess this point, only the personal data of the user/worker and the data of the car or cars that will be authorized to park would be essential for the issuance of the parking card; license plate, model, and physical characteristics (color).

- Replace the requirement for documentation of the vehicle and the circulation permit and driver's license with a simple responsible declaration from the user that they are up to date and in possession of all legal requirements and permits to drive the aforementioned vehicle. This data will only be requested if deemed essential for issuing the corresponding parking card. In any case, this necessity must be duly justified.
- Provide users with a document that includes all necessary points so that they are adequately informed to give consent for the processing of the data provided by the service responsible for the data registry. A document that serves as a model for this purpose is included with this report.
- Collect in the application the explicit consent of the interested party to process the requested data for the specific and exclusive purposes for which it is collected.

Furthermore, in the aforementioned response to the transfer of the claim, the following conclusions are highlighted:

"According to the information sent from the Central Services of AEMET, General Services Section:

- The General Affairs and Internal Regime service is responsible for processing parking cards at AEMET's central headquarters (the current application model is included in Annex IV).
 - The current procedure is posted on the intranet, and actions are taken in accordance with it as long as it does not undergo modifications (a new procedure regarding all access to the Central Headquarters, whether by motor vehicles or pedestrian access, is currently being analyzed).
- Therefore, the mentioned application is the one currently used, and the data requested were approved by the Management Committee and are identical in nature to the procedure and data requested by our affiliated Ministry regarding its vehicles.
- This service is responsible for the required data, and in accordance with Article 5 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights, all persons who have access to personal data are subject to the duty of confidentiality referred to in Article 5.1.f of the General Data Protection Regulation. This general obligation will remain even after the relationship of the obligated party with the data controller or processor to which they had access has ended.
 - Such data is maintained during the existence of the employment relationship of AEMET with its employees and is not used by personnel for purposes other than access to the parking."

Subsequently, on 12/09/2023, in response to the request for information made by the General Subdirector of Data Inspection, a copy of the "Parking Card Application" form was provided, which matches the one submitted by the claiming party, as previously noted in Fact One.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
4/14

THIRD: On 03/10/2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: On 25/02/2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the entity AEMET, for the alleged infringement of Articles 5.1.c) and 13 of the GDPR, classified under Articles 83.5.a) and b) of the same Regulation, respectively.

The opening agreement warned that if these infringements were confirmed, they could lead to the imposition of measures.

FIFTH: The aforementioned opening agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the party being complained against.

Article 64.2.f) of the LPACAP - a provision of which the complained party was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the complained party, and the sanction that could be imposed. Therefore, considering that the complained party has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in this procedure,

PROVEN FACTS

FIRST: The entity AEMET has established a procedure for its employees at the Central Headquarters to request a parking card that authorizes them to use said facilities. To do this, the requesting employee must complete a "Parking Card Request" form with their personal data related to their ID number, phone/extension, first name, last name, administrative unit, license plate, and make/model of the vehicle.

According to the procedure followed by AEMET to grant those authorizations, and as stated in the request form itself, the interested party is obliged to provide the aforementioned entity with a copy of the valid driver's license, vehicle registration document for the vehicle or vehicles, photocopy of the Family Book or original authorization, if the vehicle is not registered in the name of the applicant. The aforementioned request form does not include any information regarding personal data protection nor any indication on how to obtain it.

SECOND: The entity AEMET has informed that the procedure mentioned in Proven Fact One "is posted on the intranet, and it is acted upon as long as it does not undergo modifications (a new procedure regarding all accesses to the Central Headquarters, whether by motor vehicles or pedestrian access, is currently being analyzed)."

THIRD: The complaining party has stated that, on 22/06/2023, they requested a vehicle change on their parking card. According to the documentation provided, in response to this request, an email was sent to the complaining party, dated 30/06/2023, from the address

"buzónasuntosgenerales@aemet.es", which includes the following text:

"Request received to modify your parking card at the Central Headquarters, this service, in order to initiate the necessary procedures, in accordance with the established procedure, informs you that you must provide the following documentation for the new vehicle license plate...:

- authorization document for its use from the vehicle owner, if it is not in your name
- documentation of the vehicle's driving permit."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4.1) of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person." 6/14

indirectly, in particular by means of an identifier, such as a name, an identification number, location data, an online identifier, or one or several elements specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that person."

Article 4.2) of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction."

Article 4.7) of the GDPR defines the "data controller" or "controller" as: "the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its appointment may be provided for by the law of the Union or of the Member States." In turn, Article 4.8) of the GDPR defines the "data processor" or "processor" as the natural or legal person, public authority, service, or other body that processes personal data on behalf of the data controller.

In the present case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since AEMET carries out, among other processing activities, the collection and storage of personal data of natural persons related to ID number, phone/extension, name, surname, administrative unit, registration, and make/model of the vehicle; as well as those contained in the following documents: valid driving license, vehicle registration certificate, and Family Book.

AEMET carries out this activity in its capacity as the data controller, as it is the entity that determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR.

III

Unfulfilled obligation: infringement of Article 5.1.c) of the GDPR

In the present case, it is evident that the entity AEMET, for the issuance of a parking card to its employees at the Central Headquarters, in addition to the completion of the application form provided for this purpose, requires interested parties to provide a photocopy of the valid driving license, a photocopy of the vehicle or vehicles' registration certificate, a photocopy of the Family Book, or original authorization if the vehicle is not registered in the name of the applicant.

The use of the personal data contained in these documents has not been justified by the entity

AEMET. Considering the intended purpose and the use to which they are destined, it is concluded that such personal data are not necessary, adequate, or relevant, so that their processing constitutes an infringement of the provisions of Article 5.1.c) (Principles relating to processing) of the GDPR, which establishes the following:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/14

“1. Personal data shall be:

(...)”

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (“data minimization”).”

Article 5 of the GDPR refers to the general principles for data processing. In its paragraph c), it refers to the principle of data minimization, indicating that data must be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed.”

If we examine the definition, we can deduce that only the personal data that will be processed can be collected, that is, those that are strictly necessary for the processing; that they may only be used for the purpose that motivated their collection, and not for any other objective.

It is worth mentioning the considerations regarding the principle of data minimization made by the European Data Protection Board (EDPB) in Guidelines 4/2019, “on Article 25, Data Protection by Design and by Default,” version 2.0, dated 20/10/2020, adopted in compliance with the function entrusted to it by Article 70 of the GDPR to ensure its consistent application.

In paragraph 74 of these guidelines, it is established that:

“Firstly, data controllers must determine whether they even need to process personal data for their relevant purposes. The controller must verify whether the relevant purposes can be achieved by processing less personal data, or by using less detailed or aggregated personal data, or without having to process personal data at all. This verification must take place before any processing, but it can also be carried out at any time during the processing cycle.” (Paragraph 74).

And in paragraph 76, these Guidelines 4/2019 indicate that “Essential elements by design and by default regarding data minimization” include, among others, the following:

“. Data avoidance: All processing of personal data will be avoided when possible to fulfill the relevant purpose.

. Limitation: The amount of personal data collected will be limited to what is strictly necessary for the intended purpose.

. Access limitation: Data processing will be configured in such a way as to minimize the number of people who need to access personal data to perform their functions, and access will be limited accordingly.

. Relevance: Personal data must be relevant to the processing in question, and the data controller must be able to demonstrate this relevance.

. Necessity: Each category of personal data will be necessary for the specified purposes and will only be processed if it is not possible to achieve the purpose by other means.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/14

Therefore, it is necessary to carry out a proper assessment of the information to be requested from the data subjects, weighing the circumstances surrounding a particular processing and analyzing the consequences that access to certain data may entail.

Also, in Recital 39 of the GDPR, it is stated that: “...Personal data must be adequate, relevant, and limited to what is necessary for the purposes for which they are processed.”

In this case, it is noted that the indicated irregularities were brought to light by the claimant via email dated 09/03/2023, leading to a statement from the DPO of the AEMT which, as of September of the same year, had not been taken into consideration by that entity.

IV

Classification and qualification of the infringement

The infringement attributed to the respondent is classified under Article 83.5 a) of the GDPR, which considers that the infringement of “the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9” is subject to sanction.

The LOPDGDD in its Article 71, Infringements, states that: “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

And in its Article 72, it considers for the purposes of prescription that: “Infringements considered very serious:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, those infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe in three years, particularly the following:

(...)

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)”

V

Unfulfilled obligation: Infringement of Article 13 of the GDPR

Article 12.1 of the GDPR indicates that anyone carrying out the processing of personal data must provide the data subjects with the information indicated in Articles 13 and 14 of the GDPR.

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, under which:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/14

“1. When personal data relating to an interested party is obtained, the data controller, at the time of obtaining such data, shall provide the interested party with all the information indicated below:

a) the identity and contact details of the controller and, where applicable, of their representative;

b) the contact details of the data protection officer, where applicable;

c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;

d) when the processing is based on Article 6(1)(f), the legitimate interests of the controller or a third party;

e) the recipients or categories of recipients of the personal data, where applicable;

f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, a reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the interested party, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;

b) the existence of the right to request from the data controller access to personal data relating to the interested party, and their rectification or erasure, or the restriction of their processing, or to object to the processing, as well as the right to data portability;

- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the interested party is obliged to provide the personal data and is informed of the possible consequences of failing to provide such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the interested party.

3. When the data controller intends to further process personal data for a purpose other than that for which it was collected, it shall provide the interested party, prior to that further processing, information about that other purpose and any pertinent additional information in accordance with paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the interested party already has the information.”

This information must be provided in advance - considering Recital 39 of the GDPR.

In this case, the entity AEMET has provided a form for its employees at the Central Headquarters to request a parking card that authorizes them to use such facilities, although this form does not include any information regarding personal data protection nor any indication on how to obtain it, which is considered a violation of the provisions established in Article 13 of the GDPR as transcribed above.

VI

Classification and qualification of the infringement of Article 13 of the GDPR

The accused party has failed to comply with the stipulations of Article 13 of the GDPR.

Article 83.5(b) provides that “the infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount: a) (...)

b) the rights of the interested parties under Articles 12 to 22;” (...)

For the purposes of the limitation period for infringements, Article 72.1(h) of the LOPDGDD classifies as very serious “The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law.”

The limitation period for very serious infringements provided for in the LOPDGDD is three years.

VII

Declaration of infringement

Article 83 “General conditions for the imposition of administrative fines” of the GDPR, in its paragraph 7, establishes:

“Without prejudice to the corrective powers of the supervisory authorities under Article 58(2), each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Article 77 “Applicable regime for certain categories of controllers or processors” of the LOPDGDD provides as follows:

“1. The regime established in this article shall apply to the processing for which they are responsible or for which they are processors:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

11/14

a) The constitutional bodies or those with constitutional relevance and the institutions of the autonomous communities analogous to them.

b) The judicial bodies.

c) The General Administration of the State, the Administrations of the autonomous communities, and

the entities that make up the Local Administration.

d) The public bodies and entities of public law linked to or dependent on the Public Administrations.

e) The independent administrative authorities.

f) The Bank of Spain.

g) The public law corporations when the purposes of the processing relate to the exercise of public law powers.

h) The public sector foundations.

i) The Public Universities.

j) The consortia.

k) The parliamentary groups of the General Courts and the Autonomous Legislative Assemblies, as well as the political groups of the Local Corporations.

2. When the responsible parties or processors listed in section 1 commit any of the violations referred to in articles 72 to 74 of this organic law, the data protection authority that is competent will issue a resolution declaring the violation and establishing, where appropriate, the measures that should be adopted to cease the conduct or correct the effects of the violation that has been committed, except for that provided for in article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution will be notified to the responsible party or processor, to the body to which it hierarchically depends, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to the provisions of the previous section, the data protection authority will also propose the initiation of disciplinary actions when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied will be those established in the legislation on disciplinary or sanctioning regimes that is applicable.

Furthermore, when the violations are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for processing that have not been duly addressed, the resolution imposing the sanction will include a reprimand naming the responsible official and will order publication in the corresponding Official State or autonomous Gazette.

4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article will be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

12/14

6. When the competent authority is the Spanish Agency for Data Protection, it will publish on its website, with due separation, the resolutions related to the entities in section 1 of this article, with explicit indication of the identity of the responsible party or processor that has committed the violation. When the competence corresponds to an autonomous data protection authority, the publicity of these resolutions will be subject to what its specific regulations provide.

This provision establishes that the procedures arising from violations in the field of personal data protection committed by the categories of responsible parties or processors listed in section 1 will be resolved, in any case, by declaring the violation.

VIII

Corrective Measures

Once the violations are confirmed, the aforementioned article 77 of the LOPDGDD provides that the resolution issued may establish the measures that the infringing entity must adopt to cease the infringing conduct, correct the effects of the violation that has been committed, and carry out the

necessary adjustments, in this case, to the requirements set out in articles 5.1.c) and 13 of the GDPR, also having to provide the AEPD with evidence of compliance with what is required.

Thus, the responsible entity may be required to adjust its actions to the personal data protection regulations, to the extent expressed in the previous Legal Foundations.

In this act, the presumed violation committed and the facts that could lead to this possible breach of data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data processor who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, the entity AEMET is required to adopt the following measures within three months from the date of effectiveness of this resolution concluding this procedure:

- The cessation of the processing of personal data that involves the collection of documents that the aforementioned entity requires from its employees interested in using the parking facilities of its Central Headquarters, other than the application form. This implies the cessation of the collection of such documents for new applicants and the deletion of information already collected from previous or current users.

- Comply with the duty to inform the interested parties by including in the form...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

13/14

"Parking card application" the information that complies with the provisions of Article 13 of the GDPR. Within the same period, AEMET must justify to this Agency that it has adopted the imposed measures. It is warned that failure to comply with this order to adopt measures may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the STATE AGENCY FOR METEOROLOGY, with NIF Q2801668A, has infringed the provisions of Articles 5.1.c) and 13 of the GDPR, infringements classified in Articles 83.5.a) and b) of the same Regulation, respectively.

SECOND: TO ORDER the STATE AGENCY FOR METEOROLOGY, with NIF Q2801668A, that pursuant to Article 77 of the LOPDGDD, within three months from the date this resolution becomes final and enforceable, to prove that it has complied with the measures agreed upon in the Legal Basis VIII.

THIRD: TO NOTIFY this resolution to the STATE AGENCY FOR METEOROLOGY.

FOURTH: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

14/14

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

938-100325
Lorenzo Cotino Hueso
President of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es